IN THE CIRCUIT COURT HELD AT ACHIMOTA, ACCRA ON FRIDAY, THE 5TH DAY OF SEPTEMBER, 2025 BEFORE HER HONOUR AKOSUA ANOKYEWAA ADJEPONG (MRS.), CIRCUIT COURT JUDGE

SUIT NO. C5/09/2025

MARTHA KODIE ---------- PETITIONER
ACHIMOTA, ACCRA

VRS

EDMUND KODIE ---------- RESPONDENT
PRAMPRAM, ACCRA

PARTIES: PRESENT

COUNSEL: SUSANA NYARKOA ADDO, ESQ. FOR THE PETITIONER PRESENT
THOMPSON TETTEH ANUM HOLDING THE BRIEF OF OHENE AMANKWAH-GYAN, ESQ. FOR THE RESPONDENT PRESENT

JUDGMENT

FACTS

The parties got married under the Marriage Ordinance Cap. 127, on 26th July 2008, at Our Lady of Assumption Catholic Church, New Achimota. There are four issues of the marriage namely; Kirk Adjei-Kodie – eighteen (18) years, Cyril Adjei-Kodie - 15 years, Anne Adjei-Kodie - 12 years, Anysia Adjei-Kodie - 12 years, at the time the petition was filed.

On 28th November 2024, the Petitioner herein filed the instant petition on grounds that the marriage between her and the Respondent has broken down beyond reconciliation due to the unreasonable behaviour of the Respondent as well as adultery committed by the Respondent; and prays the Court for the following reliefs;

a. That the marriage celebrated on 26th July 2008, between the Petitioner and the Respondent be dissolved.
b. That the Parties be given Joint Custody of the four issues of the marriage.
c. That title to the uncompleted building at Prampram be settled in favour of the Petitioner.
d. That Respondent be ordered to take care of the educational, medical and other material needs of the issues of the marriage.
e. That the Respondent be ordered to pay the cost of the suit.

In his answer to the petition filed on 29th January 2025, the Respondent denied the allegations of unreasonable behaviour and adultery, and stated that it is rather the Petitioner who has put up unreasonable behaviour. The Respondent cross petitioned as follows:

i. A dissolution of the marriage converted into ordinance in accordance with Part III of the Marriage Act at Our Lady of Assumption Catholic Church, New Achimota in Accra, officiated by Rev. Father Eugenio Petrogali on 26th July, 2008.
ii. Any other orders) or reliefs the Honourable Court may deem fit under the circumstances.

I deem it necessary to mention that before the hearing of the petition, both Counsel for the parties informed the Court that, the parties had filed their Terms of Settlement on the ancillary reliefs and prayed the Court to adopt same as consent judgment.

Being a petition for divorce, as provided in *section 2(3) of the Matrimonial Causes Act, 1971 (Act 367)*, the Court shall not grant a petition for divorce unless it is satisfied on all the evidence that the marriage has broken down beyond reconciliation.

Relying on the above authority, the Court conducted a hearing on the dissolution of the marriage to enable the determination that the marriage has broken down beyond reconciliation whilst the parties' settlement on the ancillary reliefs as per their Terms of Settlement filed on 9th June 2025 will be adopted as consent judgment on the ancillary reliefs in addition to the judgment of the Court on the dissolution of the marriage.

As a result, the hearing of the instant petition was basically on the dissolution of the marriage since the parties had filed their Terms of Settlement on the ancillary reliefs.

THE CASE OF THE PETITIONER

In her evidence to the Court, the Petitioner testified among others that she is a seamstress by profession and lives at Achimota, in Accra. That the Respondent lives at Prampram and works as a free-lance telecom engineer in Accra. That they got married under the Ordinance at Our Lady of Assumption Catholic Church, New Achimota in Accra on 26th July 2008. According to the Petitioner for the past ten years, the relationship between her and the Respondent has not been the best. That they have irreconcilable differences that makes it impracticable to live with each other.

The Petitioner continued that the Respondent subjects her to incessant verbal abuse at the least provocation and would not eat the food she cooks for him but rather returns home with food cooked by another woman, refrigerates it and eat that at his convenience.

The Petitioner further testified that the Respondent has been engaged in an amorous relationship with one Clarice for the past decade and has two children with her out of that relationship. That the Respondent denies her conjugal rights, and they have not had any sexual engagement for the past four years.

That both families of the parties have had several meetings to settle the issues between them, but the meetings always end in a deadlock because the Respondent is unprepared to admit that he was at fault. That they have lived independent of each other for the past four years and have grown apart; and that they only come together to make decisions on issues bothering on the children's education and health.

According to the Petitioner, despite their differences as a couple, the Respondent has been dutiful as a father and never reneges on his obligation to provide for the children.

THE CASE OF THE RESPONDENT

The Respondent in his evidence confirmed his marriage to the Petitioner herein as well as the basic facts asserted by the Petitioner. He continued that after they got married, they resided in a house he built on his family's land at Prampram. That after some years of staying together at Prampram, the Petitioner suggested that he allows her move back to stay in Accra in order for the children to attend better schools. That the Petitioner was also not getting along well with his father and sister as they always had differences which made them quarrel so he agreed for the Petitioner to stay at Accra with the children as she suggested.

That they and the children however spent time together over the weekend at the Prampram residence. That he visited his family frequently at the Accra residence during the week and sometimes spent nights there and on some occasions, they spent the weekend at the Accra residence instead of going to Prampram over the weekend.

According to the Respondent, he found it difficult to spend nights at the Accra residence because of the untidy and unhealthy conditions there. That the Petitioner neglected to clean the washrooms and maintain a clean bedroom. That some of their children kept wetting the beds at night and she left the beds unattended to, which gave the bedroom a bad smell therefore he preferred going to Prampram. That the parties resolved to take the children to boarding schools, for the Petitioner to return home at Prampram but the Petitioner refused to return to their Prampram residence after he complied with their resolution and took the children to boarding schools.

The Respondent further testified that the Petitioner neglected to perform her sexual and household duties; and this led to other problems which they have not been able to resolve till date.

According to the Respondent he has never had an extramarital affair with another lady. That he has continuously suffered unsubstantiated accusations and allegations from the Petitioner of having numerous sexual partners, girlfriends, and children out of wedlock, from 2021 till date. That the Petitioner at every opportunity snooped through his phone, and sometimes called his female contacts accusing them of being his girlfriends, and warning them with threats to stay away from him. That the Petitioner over the years changed her behaviour towards him by being snobbish and silent when he is around her. That the Petitioner deliberately tarnished his name to their neighbours by falsely telling them that he is engaging in extramarital affairs, and that he has other children out of wedlock.

The Respondent concluded that they attempted on several occasions to reconcile but all proved futile. That in their best interest and the children, they have agreed to part ways as husband and wife as there is no hope of reconciliation. That he will continue to take care of their children and will also comply with the terms of settlement they have both signed in the presence of their lawyers and filed on 9th June 2025.

LEGAL ISSUE

The legal issue to be determined by this Court is whether or not the marriage between the parties herein has broken down beyond reconciliation.

BURDEN AND STANDARD OF PROOF

In every civil case, the general rule is that the burden of proof rests upon the party, whether Petitioner or Respondent, who substantially asserts the affirmative of his or her case.

In the case of ***Adwubeng v. Domfeh* [1996-97] SCGLR 660**, the Supreme Court held that in all civil actions, the standard of proof is proof by preponderance of probabilities, and there is no exception to that rule.

Section 11(4) of the Evidence Act, 1975 (NRCD 323) explains the burden of proof in civil cases as follows:

> *"In other circumstances, the burden of producing evidence requires a party to produce sufficient evidence so that on all the evidence, a reasonable mind could conclude that the existence of the fact was more probable than its non-existence*".

The standard of proof as stated therefore applies to a petition for divorce. See ***Happee v. Happee [1971] 1 GLR 104***. Thus, the burden is on the parties to prove the facts alleged to establish the breakdown of the marriage.

ANALYSIS

Before I examine the evidence adduced at the hearing, it is important to set out the relevant sections of the *Matrimonial Causes Act, 1971 (Act 367*) namely; *sections 1(2), 2(1) and (3)* which provide as follows:

> *"1(2) The sole ground for granting a petition for divorce shall be that the marriage has broken down beyond reconciliation.*

2(1) For the purpose of showing that the marriage has broken down beyond reconciliation the Petitioner shall satisfy the Court of one or more of the following facts:- ...

(a) that the Respondent has committed adultery and that by reason of the adultery the Petitioner finds it intolerable to live with the Respondent;

(b) that the Respondent has behaved in a way that the Petitioner cannot reasonably be expected to live with the Respondent;

(c) that the Respondent has deserted the Petitioner for a continuous period of at least two years immediately preceding the presentation of the petition;

(d) that the parties to the marriage have not lived as husband and wife for a continuous period of at least two years immediately preceding the presentation of the petition and the Respondent consents to the grant of a decree of divorce, provided that the consent shall not be unreasonably withheld, and where the Court is satisfied that it has been so withheld, the Court may grant a petition for divorce under this paragraph despite the refusal;

(e) that the parties to the marriage have not lived as husband and wife for a continuous period of at least five years immediately preceding the presentation of the petition; or

(f) that the parties to the marriage have, after diligent effort, been unable to reconcile their differences.

(3) notwithstanding that the Court finds the existence of one or more of the facts specified in subsection (1), the Court shall not grant a petition for divorce unless it is satisfied, on all the evidence that the marriage has broken down beyond reconciliation."

In the instant case, it is required that the evidence adduced by the parties herein must be able to indicate one or more of the facts under *section 2(1) of Act 367* to prove that the marriage has broken down completely.

From the evidence adduced by the parties at the hearing, I made the subsequent observations and findings:

The Petitioner in her evidence testified that the Respondent subjects her to continuous verbal abuse at the least provocation and would not eat the food she cooks for him but rather returns home with food cooked by another woman, refrigerates it and eat that at his convenience. That the Respondent has been engaged in an amorous relationship with one Clarice for the past decade and has two children with her out of that relationship. That the Respondent denies her conjugal rights.

The Respondent denied the Petitioner's allegations of adultery and unreasonable behaviour on his part. As a result, the Petitioner had a burden to lead sufficient evidence to prove her allegations of adultery and unreasonable behaviour on the part of the Respondent. This burden, the Petitioner failed to discharge in the sense that the Petitioner in her evidence repeated the assertions in her pleadings and did not lead cogent evidence to substantiate her allegations of adultery and unreasonable behaviour after same were denied by the Respondent. The Petitioner did not go beyond her rhetorical statements as already asserted in her pleadings.

The Petitioner had the onus to prove her allegation of adultery and unreasonable behaviour on the part of the Respondent, to the satisfaction of the Court which assertions she failed to prove.

The law is very clear on allegations and the legal principle is that he who alleges must prove.

In **Klah v. Phoenix Insurance Company Ltd [2012] 2 SCGLR 1139,** it was held that:

> *"where a party makes an averment capable of proof in some positive way e.g. by producing documents, description of things, reference to other facts, instances, and his averment is denied, he does not prove it by merely going into the witness box and repeating that averment on oath or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances from which the Court can be satisfied that what he avers is true".*

Considering that the Petitioner could not prove her allegations of adultery and unreasonable behaviour after same were denied by the Respondent, I find from the evidence on record that the Respondent did not commit adultery and also there was no unreasonable behaviour on the part Respondent; and I accordingly dismiss the said allegations as unsubstantiated.

Notwithstanding the above, from the pleadings of the parties and the evidence on record, there is an indication that the parties have irreconcilable differences and this led to their separation before the presentation of the present petition where they have agreed to the dissolution of their marriage.

In ***Knudsen v. Knudsen [1976] 1 GLR 204 CA***, the Court of Appeal per Amissah JA stated as follows:

> *"… Of course, in a state of affairs where the duty is placed upon the Petitioner to show that the marriage has broken down beyond reconciliation, common prudence indicates that attempts at reconciliation be made whenever possible and that where such attempts have been made without success evidence of these be given to help the Court arrive at the desired*

conclusion. It does not, to my mind follow, however, that a divorce will never be granted in any case unless evidence of an unsuccessful attempt at reconciliation is led."

Both parties in the instant petition told the Court that there have been several attempts at reconciliation but all were unsuccessful. It is therefore undisputable that the parties to the marriage have been unable to reconcile their differences. It is also not in issue that the Respondent likewise prays for the dissolution of their marriage.

Accordingly, I find that the parties to the marriage have, after diligent effort, been unable to reconcile their differences. Flowing from the above, I find that the marriage between the parties has broken down beyond reconciliation.

CONCLUSION

Consequently, I conclude that the marriage between the Petitioner and the Respondent has broken down beyond reconciliation and in the circumstances; I do hereby grant the prayer of both parties for dissolution of the marriage and enter judgment in the following terms;

1. I hereby grant a decree for the dissolution of the marriage celebrated between the parties on 26th July 2008, at Our Lady of Assumption Catholic Church, New Achimota. Thus, the marriage is hereby dissolved.
2. The marriage certificate with Certificate No. 66/08 and License No. AMA 4433/2008 is accordingly cancelled.
3. The Terms of Settlement signed by the parties herein and their respective lawyers; and filed on the 9th day of June 2025 is hereby adopted by the Court and entered

as consent judgment on the ancillary reliefs and as part of the final judgment of this Court in the instant petition; and the parties are bound by it.

4. There shall be no order as to costs.

[SGD.]

H/H AKOSUA A. ADJEPONG (MRS)

(CIRCUIT COURT JUDGE)